

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,

Complainant,

v.

AMAZON.COM SERVICES LLC,

AMAZON LOGISTICS INC.,

and

BEIJING CENTURY JOYO COURIER SERVICE CO.,
LTD.,

Respondents.

DOCKET NO. 25-04

**RESPONDENTS' OPPOSITION TO COMPLAINANT'S
MOTION TO COMPEL CORPORATE TESTIMONY**

Respondents Amazon.com Services LLC (“Amazon”), Amazon Logistics, Inc. (“ALI”), and Beijing Century Joyo Courier Service Co., Ltd. (“BCJ”), oppose Complainant China United Lines, Ltd.’s (“China United”) Motion to Compel Corporate Testimony from Respondents (the “Motion”).¹

I. INTRODUCTION

China United served Amazon with identical notices to depose Amazon’s corporate witness under Rule 143(b)(6) in this proceeding and under Fed. R. Civ. P. 30(b)(6) in the parallel contract

¹ The Amended Complaint named ALI and BCJ as Respondents for the purpose of attempting to assert jurisdiction over claims that have now been dismissed. This proceeding now focusses on Amazon’s alleged misconduct. China United’s corporate witness has confirmed that neither ALI nor BCJ took any action concerning the contract termination that is the basis of China United’s Amended Complaint. China United’s parallel action in the Southern District of New York names only Amazon as a defendant.

action pending before the U.S. District Court for the Southern District of New York (“Southern District”). Amazon sought to narrow the scope of the corporate deposition in this proceeding to those topics relevant to China United’s sole remaining fraud claim under section 41102(a) of the Shipping Act. After preliminary exchanges between counsel, Amazon offered to provide stipulations on select topics to narrow the scope of testimony to the claims at issue and minimize the burden on Amazon’s corporate witness. China United refused to pursue a compromise, stating instead that it would move to compel, and now has done so.

China United seeks corporate testimony on two broad issues: (1) Amazon’s marketing practices, including its brand protection efforts and a social media post in which it referred to China United, and (2) Amazon’s interactions with vendors other than China United. The Motion argues the topics related to Amazon’s publication of its relationship with China United go “to the heart of whether the relationship between [China United] and Amazon was confidential” and that topics related to Amazon’s general marketing strategies are relevant to Amazon’s interpretation of the publicity clause in the contract. *See* Motion at 5, 9. The Motion argues that corporate testimony regarding Amazon’s contractual dealings with other vendors will establish Amazon’s custom and practice in its interpretation of the contract.

China United concedes in its Motion that it must show fraud or concealment as an element of its sole remaining section 41102(a) claim. *See* Motion at 6. Yet the Motion seeks to compel corporate testimony regarding a “disagreement about legal matters”—whether Amazon was justified in terminating the contract for cause. As the Commission has made clear in a recent decision, that alone does not state a section 41102(a) claim; rather, there must be “some kind of

factual deception or misrepresentation inducing a carrier to carry or release cargo.”² China United does not and cannot show that the information it seeks to compel corporate testimony on is relevant to that showing; indeed it does not refer to fraud or concealment at all in discussing why it needs this testimony. The contractual issues, including matters of contract interpretation, are being litigated in the parallel Southern District action. While Amazon believes the testimony China United seeks is not relevant even in that case, it is certainly not relevant to China United’s fraud claim, and that is the only issue that needs to be decided to deny the Motion. Amazon communicated its position that it viewed these topics as beyond the scope of the Southern District action and China United proceeded with the deposition anyway. China United’s decision to file this Motion in the FMC action, rather than in the Southern District action, suggest it is attempting to play the two cases against each other, frustrating rather than furthering the efficiency objectives of Your Honor’s prior Order permitting the use of discovery in both cases. *See* June 6 Order at 23.

The corporate testimony that China United seeks to compel is not related to any claim or defense and is therefore not proportional to the needs of the case and is unnecessarily burdensome. China United filed its Motion to Compel after taking the deposition of Amazon’s corporate witness, and had the ability to ask Amazon’s corporate witness and another very senior executive, in their personal capacities, questions exploring the topics that are the subject of this Motion. At a minimum, China United should identify the specific matters it believes Amazon has not sufficiently answered in that testimony that are relevant to its remaining fraud claim in this case, so that Amazon can provide the necessary answers via written questions or stipulations and not subject its senior executives to multiple depositions. The Motion should be denied.

² *Samsung Electronics America, Inc. v. Orient Overseas Container Line Ltd.* (“*Samsung Electronics*”), FMC Docket No. 24-17, slip op. at 18-19 (July 30, 2025).

II. LEGAL STANDARD

Consistent with general discovery principles, parties are entitled only to information that is proportional to the needs of the case. *Vallejo v. Amgen, Inc.*, 903 F.3d 733 (8th Cir. 2018) (“The parties and the court have a collective responsibility to consider the proportionality of all discovery and consider it in resolving discovery disputes”) (citing advisory committee's notes to 2015 amendment to Fed. R. Civ. P. 26(b)(1)). The Commission’s discovery rules are consistent with the federal rule, which limits discovery when the information can be obtained from “some other source that is more convenient, less burdensome, or less expensive,” or when “the burden or expense of the proposed discovery outweighs its likely benefit, considering the needs of the case, the importance of the issues at stake, and the importance of the discovery in resolving the issues.” Fed. R. Civ. P. 26(b); *see also* 46 C.F.R. § 502.141(e).

Discovery requests must also be relevant to the claims or defenses at issue. *See Watkins v. Nurture, LLC*, 2024 WL 232083 at *2 (E.D. La. Jan. 22, 2024) (“The Committee Comments to [Rule 26] confirm that requiring relevance to a claim or defense ‘signals to the court that it has the authority to confine discovery to the claims and defenses asserted in the pleadings’”). Corporate deposition notices must also “describe with reasonable particularity the topics of inquiry for a corporate deposition” and should be made with “painstaking specificity, [as to] the particular subject areas that are intended to be questioned, and that are relevant to the issues in dispute.” *Id.*

Corporate testimony that is proportional and relevant to the needs of this case is limited to information relevant to China United’s sole remaining section 41102(a) claim. Commission precedent is clear that in the context of an alleged section 41102(a) violation “the critical ‘unjust or unfair device or means’ element of such a claim requires conduct that involves fraud or concealment as to a factual matter.” *Samsung Electronics*, at 9. As noted above, disagreement

about a legal matter, such as the interpretation of a contract or the existence of a contractual defense, is not enough. *Id.* at 18-19. Yet that is the key basis on which China United seeks the testimony that is the subject of its Motion to Compel.

III. ARGUMENT

A. China United's Topics Regarding General Marketing Practices (Topics 2, 3, 17) are Irrelevant to the Claims and Defenses at Issue in the FMC Proceeding.

China United seeks broad testimony regarding Amazon's general marketing practices, despite these practices being unrelated to China United's only remaining Shipping Act claim and having no relevance to any defense Amazon could raise in this matter. *See* Motion at 5. Contrary to China United's claim that these topics "go to the heart of the issue," China United has made no attempt to explain how Amazon's marketing practices show evidence of the fraud or concealment required for a section 41102(a) claim. Rather, China United seeks Amazon's testimony on these topics as an opportunity to explore the merits of its contractual dispute, specifically its interpretation of the contract's publicity clause. *See* Motion at 6.

Again, these contractual issues are a matter for the action pending in the Southern District and not matters for this proceeding. *See* June 6 Order at 11 (quoting *Muhammad Rana v. Michelle Franklin D.B.A. "The Right Move," Inc.*, Dkt. No. 19-03, 2022 WL 1744905, at *8 (FMC May 25, 2022) ("failure to pay ocean transportation charges" do not establish the requisite fraud or deceit under section 41102(a)). Far from showing how the information it seeks via testimony on these topics is relevant to a showing of fraud or concealment, China United does not even use the words "fraud" or "concealment" in arguing why it needs this information.

China United also misapplies the legal standard applicable to section 41102(a) claims. In *Rana*, the Commission explained that fraud or concealment is the necessary ingredient that renders a practice "unjust or unfair" under section 41102(a). *Muhammad Rana*, 2022 WL 1744905, at *7

(citing *United States v. Open Bulk Containers*, 727 F.2d 1061, 1064 (11th Cir. 1984)). There is no basis for China United's suggestion that every action it might allege to be unjust or unfair constitutes fraud or concealment for purposes of section 41102(a). Indeed, China United concedes that it cannot point to any evidence that meets the definition of either fraud or concealment when it speculates that the discovery it seeks might reveal evidence that "sounded in fraud," a phrase that carries no legal meaning and does not satisfy the statutory standard. Motion at 6.

B. Amazon Offered to Provide Stipulations Regarding Topics 4, 14, and 19, but CUL Refused Despite the Information Being Irrelevant to Any Remaining Claim or Defense.

The Motion seeks to compel corporate testimony on Amazon's publication of its commercial relationship with China United and again makes clear that the testimony China United seeks to compel relates to issues of contract interpretation. Motion at 9. Amazon maintains that the plain language of the publicity provision in the contract prohibits China United from using Amazon's name without its consent. This applies whether or not the information is confidential. China United's own corporate representative acknowledged that China United understood the contract to prohibit it from using Amazon's name without its permission, and that on that understanding China United sought Amazon's permission on several occasions and was denied. Ex. A, Yew Ping Teo Dep. at 16:11-22; 19:6-21:24. The lack of any factual support for China United's position is not a matter that needs to be decided to deny its Motion, however, since these issues go to contract interpretation and not to any claim or defense at issue in the FMC proceedings. They thus cannot be the basis for any compelled testimony in this proceeding.

To try to resolve this dispute without the need for Your Honor's involvement, Amazon agreed to stipulate that Amazon publicized its relationship with China United in a July 4, 2022, WeChat post. Amazon further agreed to stipulate that its marketing team authorized the WeChat post and that the WeChat post was "public." See Cullinane Decl. Ex. D. China United has refused

to entertain any compromise. *See* Cullinane Decl. Ex. E. China United is not entitled to the information it seeks as to these topics, and the Motion to Compel should be denied as to them.

C. Information Regarding Amazon's Contractual Dealings with Other Third-Party Vendors (Topics 8, 9, 10) is Irrelevant to Any Claim or Defense in the FMC Action.

The Motion seeks to compel corporate testimony related to Amazon's dealings with vendors other than China United to establish Amazon's custom and practice and its interpretation of the contract. Motion at 10-11. Again, this information is irrelevant even in the parallel contract action in the Southern District, and is unquestionably irrelevant to China United's remaining section 41102(a) fraud claim here. The legal authority China United cites in support of compelling this testimony addresses principles of contract interpretation. *See* Motion at 11 (citing *Warner Bros., Inc. v. Curtis Mgmt. Grp., Inc.*, No CV 91-4016-WMB 1995 WL 420043, at *12 (C.D.Cal. Mar. 31, 1993) (citation omitted); McCormick on Evid. § 198 (2025)). It does not address fraud, much less the factors necessary to a section 41102(a) claim under Commission precedent. Again, China United does not and cannot show how the corporate testimony it seeks regarding Amazon's dealings with other vendors could be relevant to establishing fraud or concealment and does not even use the terms fraud or concealment in seeking to justify the compelled testimony. China United has also not alleged that Amazon ever made any representations, much less knowingly false representations, about its dealings with third parties that China United relied upon as required to establish fraud. China United is not entitled to the information it seeks as to these topics and the Motion to Compel should be denied as to them.

D. China United Has Already Examined Amazon's Senior Executives on These Topics and Should Identify Specific, Unanswered Questions Before Seeking Additional Testimony.

Amazon respectfully submits that the Motion should be denied in full based on the foregoing. The Motion should also be denied because China United has already had the

opportunity to seek testimony on topics covered by this Motion from senior executives at Amazon, including Mr. David Cardadeiro, Vice President of Global Transportation Procurement & Customs Brokerage at Amazon, and Mr. Adam Baker, Vice President of Amazon Global Logistics. Mr. Cardadeiro and Mr. Baker have already been deposed in either their personal or corporate capacity regarding Amazon's general marketing practices (Topics 2, 3, 17), Amazon's WeChat posts (Topics 4, 14, and 19), and Amazon's dealings with third party vendors (Topics 9, 8, and 10), for example:

- “Do you know what the purpose would have been of mentioning CULines in name in this WeChat post?” (Ex. B, Cardadeiro Dep. at 39:4-12);
- “Does Amazon monitor its social media for uses of the Amazon name?” (Ex. B, Cardadeiro Dep. at 49:14-50:2);
- “What does Amazon do to monitor social media for uses of its name?” (Ex. C, Baker Dep. at 18:18-18:23;
- “Isn't it true that Amazon doesn't investigate uses of its name unless contracts become economically unviable for them?” (Ex. B, Cardadeiro Dep. at 160:4-11);
- “What does protection of our brand mean to you?” (Ex. B, Cardadeiro Dep. at 42:7-16);
- “You made reference a couple times today to CUL's requests for permission to use Amazon's name. I'm wondering if you were made aware of those requests at the time they were made?” (Ex. B, Cardadeiro Dep. at 151:2-9);
- “Do you know who the right person is to talk to at Amazon if I had specific questions about Amazon's WeChat postings?” (Ex. B, Cardadeiro Dep. at 39:14-21);
- “Has Amazon canceled any other contracts with other shipping companies because of unauthorized use of Amazon's name?” (Ex. B, Cardadeiro Dep. at 51:12-20);
- “Are you familiar with the fact that on the 4th of July 2022, Amazon used WeChat as an opportunity to promote its business relationship with CULines?” (Ex. B, Cardadeiro Dep. at 36:18-37:01).

Accordingly, in the event that some discovery is considered permissible on these topics, Amazon respectfully submits as stated above that at a minimum, China United should identify the specific questions it believes Amazon has not answered in previous discovery of senior Amazon

witnesses on these topics so that Amazon can answer via written questions or stipulations and not subject senior executives to multiple depositions on topics that have already been asked and answered.

CONCLUSION

The corporate testimony that China United seeks to compel is not related to any claim or defense and, therefore, is not proportional to the needs of the case. The Motion to Compel Corporate Testimony should be denied.

Respectfully submitted,

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February 9, 2026

CERTIFICATE OF SERVICE

I certify that on this 9th day of February, 2026, the aforesaid Opposition to Complainant's Motion for a Protective Order has been filed with the Secretary for the public docket, with a copy to judges@fmc.gov and served on the following counsel of record, as provided by the Initial Order in this proceeding.

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